

11.	26PR0104	IN RE: THE DECLARATION OF TRUST OF DOLBY R. MARPLE AND TAMZIA L. MARPLE DATED FEBRUARY 21, 1989
PETITION TO COMPEL ACCOUNTING, REMEDY BREACH OF TRUSTEE; COMPEL DISTRIBUTIONS; REDUCE TRUSTEE COMPENSATION; AND AWARD PAYMENT OF PETITIONER'S ATTORNEY'S FEES		

This matter is before the court for the hearing of the petition filed April 13, 2026, which seeks an order: (1) compelling the Trustee, Richard Marple ("Trustee"), to provide a complete accounting from January 24, 2024 to present within 30 days of the Court's order; (2) compelling the Trustee to provide all supporting documents relied on by his accounting; (3) surcharging the Trustee for damage he caused against the Trust in amount to be proven at trial; (4) compelling the Trustee to distribute the Trust assets, including the tangible personal property within 60 days of the Court's Order; (5) award Petitioner reasonable attorney's fees and costs in an amount not less than \$5,000; (6) denying any trustee fee to the Trustee; and (7) any other and further orders the Court considers just and proper.

Notice of Hearing – Decedent's Estate or Trust was filed April 16, 2026. A hearing was set for June 8, 2026, which was continued to July 6, 2026. To date, no objections or additional pleadings have been received by the Court.

TENTATIVE RULING #11:

ABSENT OBJECTION THE PETITION IS GRANTED AS FOLLOWS:

- (1) PETITIONER'S REQUEST TO COMPEL TRUSTEE TO PROVIDE A COMPLETE ACCOUNTING FROM JANUARY 24, 2024, TO PRESENT WITHIN 30 DAYS OF THE COURT'S ORDER IS GRANTED;**
- (2) PETITIONER'S REQUEST TO COMPEL TRUSTEE TO PROVIDE ALL SUPPORTING DOCUMENTS RELIED ON BY HIS ACCOUNTING IS GRANTED;**
- (3) THE COURT RESERVES JURISDICTION TO SURCHARGE TRUSTEE FOR DAMAGE HE CAUSED AGAINST THE TRUST IN AN AMOUNT TO BE PROVEN AT TRIAL;**
- (4) PETITIONER'S REQUEST TO COMPEL TRUSTEE TO DISTRIBUTE THE TRUST ASSETS, INCLUDING THE TANGIBLE PERSONAL PROPERTY WITHIN 60 DAYS OF THE COURT'S ORDER IS GRANTED;**
- (5) THE COURT RESERVES JURISDICTION TO AWARD PETITIONER REASONABLE ATTORNEY'S FEES IN AN AMOUNT TO BE DETERMINED UPON SUBSTANTIAL EVIDENCE; AND**
- (6) PETITIONER'S REQUEST TO DENY ANY TRUSTEE FEE TO THE TRUSTEE IS GRANTED.**

ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE

July 6, 2026
Dept. 9
Probate Tentative Rulings

COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.